

FEDERAL MARITIME COMMISSION

CMI DISTRIBUTION, INC.,

Complainant,

v.

SERVICE BY AIR, INC., RADIANT
CUSTOMS SERVICES INC. (FORMERLY
KNOWN AS SBA CONSOLIDATORS,
INC.), AND LAS FREIGHT SYSTEMS
LTD.,

Respondents.

Docket No. 17-05

Served: November 24, 2021

BY THE COMMISSION: Daniel B. MAFFEI, *Chairman*,
Rebecca F. DYE, Michael A. KHOURI, Louis E. SOLA, Carl W.
BENTZEL, *Commissioners*.

Order Denying Petition for Attorney Fees

This case is before the Commission on Complainant CMI Distribution, Inc.'s (CMI) petition for attorney fees. On July 26, 2021, the Commission found that Respondent Service by Air, Inc. (SBA) violated 46 U.S.C. §§ 40501(a), 40901(a), and 41104(a)(2)(A), and the Commission awarded CMI reparations, plus interest, of \$120,083.59. CMI now seeks attorney fees of

\$162,921.25 and expert witness fees of \$5,000.

For the reasons set forth below, the Commission denies CMI's petition for attorney fees. Although CMI is eligible to receive fees, the balance of entitlement factors weighs against awarding them.

I. BACKGROUND¹

A. Factual Background

Complainant CMI imports plastic packaging materials from China and sells them on the United States wholesale market. FMC Order at 2. Respondent SBA is licensed by the Transportation Security Administration to operate as an indirect air carrier but is not licensed by the Commission and does not have a published tariff for ocean freight rates. *Id.* Respondent Radiant Customs Services, Inc. (Radiant) is owned by the same parent company as SBA but operates as a separate entity. *Id.* at 2. Respondent LAS Freight Systems Ltd. (LAS Freight) is a Taiwanese company and is registered with the Commission as a foreign non-vessel operating common carrier (NVOCC). *Id.* at 3.

In 2013 and 2014, CMI arranged ocean transportation for its packaging materials using a licensed NVOCC. *Id.* In 2014, CMI and SBA engaged in discussions, and CMI used SBA's services to ship its cargo by ocean carrier through June 2015. *Id.* at 3-4. CMI, in turn, engaged LAS Freight to transport CMI's shipments from China to the U.S., and LAS Freight would often enter arrangements with other intermediaries. *Id.* at 4. SBA would not release the shipments to CMI until it received confirmation that CMI had paid its overseas suppliers. *Id.* at 5.

¹ The Commission set forth the factual background in more detail in its order on the merits. See *CMI Distribution, Inc. v. Service by Air, Inc.*, Docket No. 17-05, Order Affirming-in-Part and Reversing--in-Part Initial Decision, (FMC July 26, 2021) (FMC Order) (also published at 2021 FMC LEXIS 109).

Problems arose when CMI began experiencing cash-flow problems that delayed payments to the suppliers, resulting in delayed release of the containers and the accrual of demurrage charges. *Id.* SBA collected these charges from CMI with a markup. *Id.*

B. Procedural History

In 2017, CMI filed a complaint against SBA, Radiant, and LAS Freight alleging that they violated 46 U.S.C. § 40501 by failing to maintain published tariffs showing ocean freight rates, § 41104(a)(2)(A) by charging rates not displayed in a published tariff, and § 41102(c) by charging for storage and demurrage without notice or published tariffs, adding markups to demurrage assessed by third parties while representing that the amounts were purely pass-through charges, charging demurrage in situations where no demurrage was properly owed to the underlying third party, and failing to provide CMI with a variety of documents. Compl. ¶¶ 32-42. CMI also alleged that SBA violated § 40901 by acting as an OTI without a license. *Id.* ¶ 32. CMI sought approximately \$400,000 in reparations based on sixty-two shipments. *Id.* Ex. 1.

SBA and Radiant moved to the dismiss the complaint, the ALJ required the parties to supplement the record, and the parties stipulated that seventeen of the sixty-two shipments were outside the Commission's jurisdiction. *CMI Distribution, Inc. v. Service by Air, Inc.*, Order Granting-in-Part and Denying-in-Part Motion to Dismiss at 3 (ALJ Oct. 6, 2017). The ALJ otherwise denied the motion to dismiss. *Id.* at 10.

In May 2019, the ALJ issued an Initial Decision finding in CMI's favor with respect to twenty-eight shipments. FMC Order at 6. The ALJ awarded CMI \$126,185 in reparations based on the § 41104(a)(2)(A) claim and seventeen shipments for which there was sufficient evidence to award reparations. FMC Order at 6. The ALJ also directed SBA to cease and desist acting as an NVOCC without a license or published tariff. The ALJ dismissed with prejudice the

claims against Radiant and LAS Freight.²

Both CMI and SBA filed timely exceptions challenging the ALJ's Initial Decision. SBA argued that it did not violate §§ 40501(a), 40901(a), 41102(c), and 41104 because those provisions apply to common carriers, or NVOCCs, and it was neither. SBA also denied imposing unreasonable charges and asserted that the ALJ erred in calculating reparations and issuing a cease-and-desist order. CMI challenged the ALJ's reparation award, claiming that the ALJ should have awarded it an additional \$121,815.

The Commission affirmed in part and reversed in part the ALJ's Initial Decision on July 26, 2021. The Commission found that the record supported the ALJ's determination that SBA was a common carrier as defined in 46 U.S.C. § 40102(7). FMC Order at 9. The Commission first found that SBA held itself out to CMI, and to the general public, as providing transportation by water of cargo between the United States and a foreign country for compensation. *Id.* at 10. The Commission determined it did not matter that, according to SBA, CMI directed pricing levels, or that neither party understood SBA to be holding itself out as an NVOCC, because the evidence showed that, among other things, SBA provided transportation to CMI as opposed to acting as an agent of CMI. *Id.* at 10-11. The Commission also acknowledged that although SBA did not advertise itself as an NVOCC, the evidence established that SBA made clear to the public that it was willing to provide ocean transportation by water. *Id.* at 12-13; *see also id.* at 14 ("In sum, SBA affirmatively positioned itself as offering similar services as a licensed NVOCC and offered competitive ocean freight rates. These actions signaled its willingness to arrange ocean transportation and demonstrate that it held itself out to the public as a common carrier.").

Second, the Commission found that SBA assumed

² In a separate order, the ALJ struck CMI's freight overpayment claim as untimely.

responsibility for the transportation, rejecting SBA's contention that it did not assume responsibility because it did not issue "real" bills of lading. *Id.* at 18. And third, the Commission found that SBA met the definition of NVOCC under 46 U.S.C. § 40102(17). *Id.* at 20-22. Given the finding that SBA operated as an NVOCC, the Commission also found that SBA had violated §§ 40901(a), 40501(a), and 41104(a)(2)(A) by operating without a license, failing to publish a tariff, imposing charges not found in a published tariff. *Id.* at 25-28.

As for reparations, the Commission rejected CMI's argument that reparations should be increased and affirmed the ALJ's decision to limit the reparations to the markups SBA imposed on CMI. *Id.* at 30. The Commission reversed the ALJ's calculation of reparations, however, and reduced CMI's reparations by \$13,283. *Id.* at 31-34. Moreover, the Commission reversed the ALJ's issuance of a cease-and-desist order to SBA. *Id.* at 34.

CMI subsequently petitioned for attorney fees of \$162,921.25 and expert witness fees of \$5,000. SBA opposed the petition, arguing that CMI was not entitled to fees and that the amount of fees sought was not reasonable.³

³ CMI also filed a motion for leave to respond to SBA, which the Commission now denies. CMI asserted that it was not attempting to reargue issues from its petition, but rather it sought to address "certain misleading and inaccurate representations made by SBA in its Opposition." SBA countered that CMI's proposed filing was unjustified and inconsistent with the Commission's rules but did not oppose the motion if SBA was given the opportunity to file a sur-reply.

The Commission's procedural rules implementing 46 U.S.C. § 41305(e) authorize petitions and replies thereto but do not provide for a reply from the petitioner. See 46 C.F.R. § 502.254(d) and (e). Further, if CMI's fee petition were treated as a non-dispositive motion under 46 C.F.R. § 502.69, replies in support of non-dispositive motions are not permitted unless there is a showing of extraordinary circumstances, a standard that CMI has not met nor attempted to meet. 46 C.F.R. § 502.71(c). For the most part, the issues CMI raises in its proposed reply have already been briefed or could have been addressed in more detail in its original petition.

II. DISCUSSION

A. Legal Standards

Section 41305(e) of Title 46 provides that the Commission may award the prevailing party reasonable attorney fees. *See also* 46 C.F.R. § 502.254(a). The Commission conducts a two-step inquiry in determining whether to award fees. *Logfret, Inc. v. Kirsha, B.V.*, 2 F.M.C.2d 110, 113 (FMC 2020). First, the Commission considers whether a petitioner is eligible for fees, that is, whether it is a “prevailing party.” If the answer is yes, the Commission considers whether it should award fees to the petitioner. *Id.* at 113; *Baltic Auto Shipping Inc. v. Hitrinov*, Docket No. 14-16, 2017 FMC LEXIS 16, at *21-25 (FMC Oct. 25, 2017); *Edaf Antillas, Inc. v. Crowley Caribbean Logistics, LLC*, Docket No. 14-04, 2016 FMC LEXIS 58, *12-14 (FMC Sept. 14, 2016).

The petitioner bears the burden of proving that it is eligible for and entitled to a fee award, documenting the appropriate hours, and justifying the reasonableness of the rates. *Logfret*, 2 F.M.C.2d at 113; *Edaf Antillas*, 2016 FMC LEXIS 58 at *11; *see* 46 C.F.R. § 502.254(d). The standard of proof is preponderance of the evidence. *Logfret*, 2 F.M.C.2d at 113. There is no presumption for or against a fee award, and whether the petitioner is a complainant or respondent is not a factor. Final Rule: Organization and Functions; Rules of Practice and Procedure; Attorney Fees (Final Rule), 81 Fed. Reg. 10508 (Mar. 1, 2016).

B. Eligibility for Attorney Fees

It is undisputed that CMI is eligible for attorney fees as a prevailing party. To prevail as a complainant requires obtaining “at least some relief on the merits.” Final Rule, 81 Fed. Reg. at 10512 (quoting *Farrar v. Hobby*, 506 U.S. 103, 111 (1992)). A complainant “generally qualif[ies] as the ‘prevailing party’ in a Commission proceeding when the presiding officer awards reparations or issues a cease-and-desist order.” *Id.*; *see also*

Adenariwo v. BDP Int'l, Docket No. 1921(I), 2017 FMC LEXIS 27, *5 (FMC June 28, 2017) (“And claimants awarded reparations qualify as prevailing parties.”). Here, the Commission awarded CMI reparations.

C. Entitlement to Attorney Fees

The “primary consideration” in deciding whether a petitioner is entitled to attorney fees is whether a fee award is consistent with the purposes of the Shipping Act. *Logfret*, 2 F.M.C.2d at 113. The Commission considers several factors in its analysis: frivolousness, objective unreasonableness (in the factual and in the legal components of a case), motivation for pursuing claims and defenses, and, in some circumstances, deterrence and compensation. *Id.* at 113-14; *Baltic Auto*, 2017 FMC LEXIS 16, *25-27.

CMI argues it is entitled to attorney fees because CMI’s fees were incurred due to the large number of shipments involved and SBA’s “hardball” and deceptive practices throughout the course of CMI and SBA’s relationship and during the litigation; fees are necessary to deter to potential future violations; after deducting attorney fees from the reparations award, CMI would be in no better position than if it had never pursued SBA for violating the Shipping Act and this would deter other shippers from pursuing claims; and it is permissible to award fees in excess of reparations.

SBA counters that the equities favor SBA because its violations were administrative and not in bad faith and this dispute arose because CMI failed to pay its suppliers; the Commission rejected the majority of CMI’s claims, finding only one of three respondents liable, and for far less than CMI sought in reparations; SBA’s arguments were not frivolous; a fee award would not serve considerations of deterrence; and CMI refused to engage in settlement negotiations.

1. Objective Unreasonableness

Claims are objectively unreasonable if they have no legal or factual support, i.e., they clearly lack merit or are “otherwise patently devoid of a legal or factual basis.” *Logfret*, 2 F.M.C.2d at 114 (quoting *Insurent Agency Corp. v. Hanover Ins. Co.*, No. 16-3076, 2020 U.S. Dist. LEXIS 2565, at *10 (S.D.N.Y. Jan. 8, 2020)). That a complainant has prevailed and obtained reparations does not alone render a respondent’s defenses objectively unreasonable, otherwise prevailing complainants would be per se entitled to attorney fees, an approach the Commission has rejected. Final Rule, 81 Fed. Reg. at 10509 (noting that “[t]here should be no general presumption for or against awarding attorney fees”); *see also Kirtsaeng v. John Wiley & Sons, Inc.*, 136 S. Ct. 1979, 1988 (2016) (explaining that whether defendant violated a federal statute and whether he “made serious arguments in defense of his conduct” are entirely separate questions).

SBA’s arguments that it was not a common carrier or an NVOCC were not so lacking in legal or factual support that they were objectively unreasonable or frivolous. Although SBA’s conduct bore several indicia of common carrier or NVOCC status – e.g., charging freight, referring to documents as tariffs, and issuing bills of lading – SBA offered explanations for why the Commission should discount that evidence that were not wholly implausible albeit ultimately unpersuasive. FMC Order at 10-11 (arguing that SBA met rates proposed by CMI); *id.* at 11 (citing testimony from CMI employee that SBA did not hold itself out as an NVOCC and that CMI did not understand it to be one); *id.* at 15 (explaining that air waybills were not functional bills of lading but rather backup documentation). Further, SBA pointed out ways in which its actions vis-a-vis CMI were different from typical shipper-carrier relationships: For instance, SBA did not advertise as an NVOCC, it did not issue bills of lading to CMI, and it did not appear as a shipper on another carrier’s bill of lading. *Id.* at 12, 15. While the Commission did not find the absence of such evidence determinative, *id.* at 18-19, 24, SBA’s arguments were not wholly

without merit.

Further, that the Commission affirmed the Initial Decision in most respects does not make SBA's exceptions objectively unreasonable. As SBA points out, the Commission agreed in part with some of SBA's exceptions and disagreed with CMI's arguments in CMI's exceptions to the Initial Decision. In sum, SBA's positions in this case were not unreasonable. Parties should not be discouraged from litigating meritorious claims and defenses by the threat of being held liable for their opponent's attorney fees if they fail. *Kirtseng*, 136 S. Ct. at 1987 ("Fee awards are a double-edged sword: They increase the reward for a victory—but also enhance the penalty for a defeat. And the hallmark of hard cases is that no party can be confident if he will win or lose.")

2. Motivation

Likewise, the "motivation" factor does not weigh in favor of awarding CMI fees. Improper motivation exists if the party from whom fees are sought asserted claims, not because they have merit, but because they sought to "'knowingly gamble[] on an unreasonable legal theory in order to achieve a secondary gain,'" like leveraging settlement. *Logfret*, 2 F.M.C.2d at 116 (quoting *Creazioni Artistiche Musicali, S. R. L. v. Carlin Am., Inc.*, No. 14-9270, 2017 U.S. Dist. LEXIS 124082, *10 (S.D.N.Y. Aug. 4, 2017)) (alteration in original).

CMI does not point to any evidence, however, that SBA was using this action, or its defenses, or discovery, to achieve some secondary gain or obtain any objective other than an order dismissing the claims. At most, CMI asserts that "[i]n pursuing the appeal [of the Initial Decision], SBA continued to exercise its significant financial advantage over CMI in the hopes it would deter CMI from seeking to enforce its legal remedies." CMI Pet. at 6.

But it is not improper for a party to file non-frivolous exceptions. The Commission's rules expressly permit parties to do

so. 46 C.F.R. § 502.227. Similarly, CMI has not established that what it characterizes as “hardball” tactics – engaging in lengthy, fact-intensive documentary discovery, taking and defending multiple depositions to establish a record, appealing the Initial Decision – is litigation misconduct. *See* CMI Pet. at 4-5. This activity is also consistent with two parties zealously representing their interests. The Commission encourages parties to litigate meritorious claims and defenses. Final Rule, 81 Fed. Reg. at 10509.

CMI asserts that extensive discovery was required because of SBA’s “deceptive practices” and “deceptive record-keeping” while providing transportation service to CMI and during the litigation. CMI Pet. at 4-5. And it appears that some of SBA’s practices contributed to the discovery costs. It issued airway bills as purported “backup documentation” for ocean transportation and some of its employees made contradictory statements.⁴ *Compare* Second Zasada Aff. ¶ 9 (denying that SBA represented that it was collecting demurrage charged by shipping lines) *with* FMC Order at 17 (citing CMI Br., Ex. C) (SBA employee conceding that it referred to steamship line demurrage when communicating with CMI for simplicity’s sake because CMI did not understand the transportation process and the intermediaries involved).

Some of the discrepancies appear to arise, however, from the fact that employees from both parties used shipping terms like “tariff” and “demurrage” imprecisely rather than in the sense used by the Commission. *See* Jaloweicki Decl. ¶¶ 11, RX 114; FMC Order at 11, 17, 32. And, in any event, the conduct was not so egregious that this factor would support an award of fees. The Commission has required more when awarding fees. *See Edaf Antillas*, 2016 FMC LEXIS 58 at *14-15 (awarding fees when complainant “failed to substantiate the legal and factual components of its case, knowingly disregarded the ALJ’s orders on

⁴ CMI also states that it was “compelled to retain an expert to confirm that the rates charged CMI were not reflected in any existing tariff.” CMI Pet. at 5. But it appears that SBA’s primary argument was that it was not a common carrier required to maintain a tariff, not that it had a tariff.

numerous occasions, abandoned its claim, forced multiple [r]espondents to expend significant resources of both time and money in their defense and, perhaps most egregiously, failed to terminate the claim when it could have limited the expense of the [r]espondents”).

Finally, both parties assert that the other was at fault for refusing to engage in settlement discussions. CMI Pet. at 5; SBA Opp. at 1, 9-10. The Commission does not, however, believe that a party’s decision to engage in settlement discussions is particularly relevant to the attorney fee analysis. Generally, settlement offers, and statements made during compromise negotiations, are inadmissible. *See* 46 C.F.R. § 502.75(c); Fed. R. Evid. 408. And parties should not feel undue pressure to settle (and not pursue meritorious claims or defenses) because not doing so could lead to attorney fee liability. Although some federal courts have considered settlement communications to determine the amount of reasonable attorney fees, that information is not considered in deciding whether fees should be awarded. *See Ingram v. Oroudjian*, 647 F.3d 925, 927 (9th Cir. 2011) (per curiam); *Lohman v. Duryea Borough*, 574 F.3d 163, 167 (3d Cir. 2009); *Parke v. First Reliance Standard Life Ins. Co.*, 368 F.3d 999, 1012 (8th Cir. 2004); *Moriarty v. Svec*, 233 F.3d 955, 967 (7th Cir. 2000).

3. Deterrence and Compensation

Deterrence and compensation considerations do not weigh strongly for or against a fee award. As SBA points out, the Commission reversed the ALJ’s issuance of a cease-and-desist order because “[t]here is no evidence that SBA acted as an unlicensed NVOCC before 2014, and there is no evidence that SBA continued acting as an unlicensed NVOCC after mid-2015 when it apparently ceased handling CMI’s shipments.” FMC Order at 34; *id.* (“Given the absence of any indication that SBA has continued or will continue acting as an unlicensed NVOCC without a tariff, there is no basis for ordering it to cease and desist engaging in that activity.”). Consequently, a fee award is not necessary to deter SBA

from repeating its conduct. There is no evidence that SBA is a repeat offender; rather, the record suggests that SBA's unlawful conduct resulted from overzealous business conduct of an SBA employee with respect to one shipper. FMC Order at 25.⁵

That said, the Commission rejects SBA's attempts to downplay the seriousness of its conduct. In opposing the fee petition, SBA insists that its violations comprise administrative errors that resulted from naïve attempts to accommodate CMI, who, in SBA's view, caused the problems by failing to pay its suppliers. But ignorance of Shipping Act requirements or Commission regulations or reckless assumptions that they do not apply are not valid excuses that lessen SBA's culpability.⁶ Nor is CMI's conduct particularly relevant to SBA having provided service without a license or published tariff. SBA's violations were also not simply administrative or technical. By acting as an NVOCC without a license or a published tariff, SBA undermined the regulatory purpose and structure established by Congress, devalued existing licenses, and exposed the shipping public to greater potential harm. Were there any indication that SBA had engaged in similar violative conduct regarding other shippers, or that it might do so in the future, this factor would weigh in favor of a fee award.

CMI also raises a separate deterrence argument in its petition. CMI notes that its claimed attorney fees (\$162,921.25) exceed the reparations and interest the Commission awarded

⁵ Fees can also be awarded to discourage parties from overly aggressive litigation tactics, such as litigating the same claims "ad nauseum" with no apparent regard for judicial rulings declaring their claims or defenses meritless or unsupported. *Kirtsaeng*, 136 S. Ct. at 1989; see also *Steinbeck v. Kaffaga*, No. CV 14-08681, 2016 U.S. Dist. LEXIS 183836, *3-5 (C.D. Cal. Feb. 18, 2016). As noted above, however, SBA's defensive efforts do not appear overly aggressive.

⁶ Further, SBA is a sophisticated logistics provider that wholly owned a licensed NVOCC when it provided services to CMI. FMC Order at 20.

(\$120,083.59).⁷ According to CMI, after deducting fees, it “is in no better position than it had been if it had never pursued SBA for its Shipping Act violations” and “without an award of attorney’s fees there is no deterrence value in the reparations awarded to CMI and this would likely discourage other similarly situated shippers from pursuing reparations due to the time and costs associated with pursuing a claim.” CMI Pet. at 3, 4.

CMI’s argument has some merit. On one hand, if a claim is complicated, involves multiple shipments, and requires extensive paper discovery or depositions because material facts are disputed, a complainant’s attorney fees could easily exceed their actual injury and the reparations potentially recoverable. Without the prospect of a fee award, complainants might be deterred from enforcing the Shipping Act, and potential violators may more easily escape consequences.

On the other hand, the Commission has already found that there is no presumption in favor of fees for prevailing complainants. Final Rule, 81 Fed. Reg. at 10513 (“Upon consideration of the text, legislative history, and purposes of the Shipping Act, as well as the relevant comments, the Commission concludes that prevailing complainants and prevailing respondents should be treated in an even-handed manner in determining whether to award attorney fees.”); *id.* (“There should be no general presumption for or against awarding attorney fees.”). It is also possible that a respondent’s fees could regularly exceed the amount at issue in litigation. If the amount of fees vis-a-vis the amount at issue is a factor in the fee analysis, complainants could face increased exposure to paying their adversaries’ fees. Increased exposure to fee liability might also deter a complaint from bringing claims. Further, “although complaint proceedings assist the Commission in enforcing the Shipping Act, there is no indication that Congress intended complainants to serve as ‘private attorneys general’” for fee purposes. *Id.* at 10514.

⁷ The Commission awarded reparations of \$112,902 plus interest of \$7,181.59. FMC Order at 35.

In addition, that a complainant's attorney fees exceed its reparations might have little to do with a respondent's culpability or motivation or litigation conduct. Here, it is worth noting that CMI initially sought approximately \$400,000 based on sixty-two shipments but ended up recovering \$112,902 based on seventeen shipments. In other words, the ratio of fees to reparations might not always be related to litigation costs that could deter shippers from bringing complaints.

Relatedly, CMI argues that an award of attorney fees is necessary for it to be made whole, citing *Gruenberg-Reisner v. Overseas Moving Specialists*, Order Granting Petition for Attorney Fees, Docket No. 1947(I) (SCO Nov. 3, 2017). This argument goes too far, however, because *every* prevailing complainant and prevailing respondent could also argue that without fees they are not truly made whole. Further, compensation is a relevant factor in "particular circumstances." *Edaf Antillas*, 2016 FMC LEXIS 58 at *14 (quoting *Fogerty v. Fantasy, Inc.*, 510 U.S. 517, 534 n. 19 (1994)). The circumstances in *Gruenberg-Reisner* are distinguishable from those here. The claimants in *Gruenberg-Reisner* were individuals shipping household goods, a car, and a motorcycle overseas. *Gruenberg-Reisner v. Overseas Moving Specialists*, Docket No. 1947(I), 2017 FMC LEXIS 9, *1 (SCO May 17, 2017). In contrast, Complainant CMI, a corporation, is in the business of importing plastic packaging material from China and is thus not similarly situated to the *Gruenberg-Reisners*.⁸

III. CONCLUSION

For the reasons set forth above, the factors on balance weigh against awarding attorney fees.

⁸ Moreover, the Order Granting Petition for Attorney Fees in *Gruenberg-Reisner* was an unreviewed decision by a Small Claims Officer in an informal small claims proceeding and thus has limited precedential value.

THEREFORE, IT IS ORDERED, That Complainant's Motion for Leave to File Response to the SBA Reply be DENIED.

IT IS FURTHER ORDERED, That Complainant's Petition for Attorney's Fees be DENIED.

IT IS FURTHER ORDERED, That this proceeding be discontinued.

By the Commission.

Rachel E. Dickon
Secretary